

NEEDIN EXPRESS – DELIVERY USER AGREEMENT

This Delivery User Agreement (“Agreement”) is entered into between:

Company

Viec Carry India Pvt Ltd,
having its registered office at:
BG-60 Main NH-58
Yogi Puram, Meerut – 250002, Uttar Pradesh, India
Email: support@withneedin.com
Website: www.withneedin.com

(hereinafter referred to as the “Company”)

AND

User

Any individual registering on and using the **Needin** mobile application to avail **Needin Express** delivery services
(hereinafter referred to as the “User”).

1. Purpose

Needin Express is a **technology-enabled delivery facilitation service** that connects Users with **independent delivery partners** for travel-based, or time-bound deliveries. The Company does not itself provide delivery services.

2. Platform Role

The Company acts **solely as a facilitator and technology platform**. Delivery services are performed by **independent delivery partners**. Nothing in this Agreement creates an employer-employee, agency, partnership, or joint-venture relationship between the Company and any delivery partner.

3. Eligibility

Users must be **18 years of age or older** and legally capable of entering into a binding contract under Indian law to use Needin Express.

4. User Responsibilities

The User agrees to:

- Provide accurate pickup and delivery details;
- Ensure safe, secure, and proper packaging of parcels;
- Be available (or ensure availability) at pickup and delivery locations at the scheduled time;
- Comply with all applicable laws and regulations.

4.A – Packaging Responsibility & Proof (Evidence of Packaging)

- **Proof of Packaging Condition**
The User acknowledges and agrees that proper and secure packaging of the parcel is solely the responsibility of the User. To ensure transparency and avoid disputes, the Company reserves the right to capture photographic evidence of the parcel at the time of pickup through its delivery partner.
- Such photographs may include images of the outer packaging, seals, and visible condition of the parcel at the time of pickup. These photographs shall be treated as valid evidence of the parcel's apparent external condition at the time of handover.
- In the event of any claim, complaint, or dispute regarding damage, leakage, or breakage of the contents, such photographic evidence shall be relied upon to determine whether the parcel was externally intact at the time of pickup. The Company shall not be held liable for damages arising from inadequate, improper, or defective packaging by the User.

5. Permitted & Prohibited Items

Permitted Items

Only legal, safe, and non-restricted items may be sent.

Prohibited Items

The User shall **not** send:

- Illegal, hazardous, flammable, explosive, or narcotic substances;
- Cash, jewellery, precious metals/stones, or high-value items;
- Restricted goods under applicable laws.

The User bears **full responsibility** for parcel contents and declarations.

6. No Inspection & Declaration

The Company and delivery partners **do not inspect parcel contents**. The User warrants that all declarations are true and lawful and indemnifies the Company against violations.

6.A – No Inspection & Right to Refuse Suspicious Parcels

No Inspection of Contents & Right to Refuse Suspicious Parcels

The Company and its delivery partners do not open, inspect, or verify the internal contents of any parcel. However, the delivery partner shall have the absolute right to refuse pickup of any parcel that appears suspicious, unsafe, illegal, or hazardous based on external observation.

This includes, but is not limited to, parcels showing signs of leakage, unusual odor, abnormal sounds, improper sealing, damaged packaging, or any indication of prohibited, illegal, or dangerous items.

Such refusal shall be deemed a preventive safety measure and shall not be considered a breach of service. The Company shall not be liable for any loss, delay, or inconvenience arising from refusal of such parcels, and the User shall bear full responsibility for ensuring that the parcel complies with applicable laws and safety standards.

7. Delivery Timelines

Pickup and delivery timelines shown in the App are **estimates only** and **not guaranteed**. Delays may occur due to traffic, weather, technical issues, or other factors beyond control.

8. Charges & Payments

- Delivery charges are calculated based on distance, parcel characteristics, and applicable platform fees;
 - Payments must be completed successfully before a delivery request is processed;
 - **Delivery charges are generally non-refundable**, unless expressly stated or required by law.
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9. Cancellation

- Once a parcel has been picked up, **cancellation is not permitted**;
 - If a User cancels prior to pickup, applicable charges may apply as displayed in the App.
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10. Recipient Unavailability

If the recipient is unavailable:

- Reattempt or return charges may apply;
 - The User shall bear any additional costs incurred.
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11. No Insurance

Parcels sent via Needin Express are **not insured by default**. Users are advised **not to send high-value or sensitive items**.

12. Limitation of Liability

To the maximum extent permitted by law:

- The Company shall **not be liable** for loss, damage, theft, delay, or non-delivery of parcels;
 - The Company shall not be liable for indirect, incidental, or consequential damages.
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13. Force Majeure

The Company shall not be liable for failure or delay caused by events beyond reasonable control, including natural disasters, government actions, strikes, network failures, or technical issues.

14. Data Privacy

User data shall be collected and processed in accordance with the Company's **Privacy Policy**.

15. Account Actions

The Company reserves the right to suspend or terminate User access for violations of this Agreement, misuse, or unlawful activity.

16. Modifications

The Company may modify this Agreement from time to time. Continued use of Needin Express constitutes acceptance of the updated Agreement.

17. Governing Law & Jurisdiction

This Agreement shall be governed by the laws of India. Courts at **Meerut, Uttar Pradesh** shall have exclusive jurisdiction.

17.A Delivery Partner / Traveller Declaration

The Delivery Partner / Traveller hereby clearly confirms that:

- He/She is already travelling on the route displayed in the application;
- Carrying the parcel will not require any additional travel, special route, or separate trip;
- Needin Express only provides a travel-based parcel connection facility and does not require or compel any Delivery Partner to undertake an additional journey.

This declaration shall be mandatorily made by accepting the checkbox provided in the application.

18. Acceptance

By creating a profile or continuing to use the Needin App, the User confirms that they have read, understood, and accepted this Agreement along with the **Terms & Conditions** and **Privacy Policy** of the Company.